

BEFORE THE FEDERAL MARITIME COMMISSION

INTERMODAL MOTOR CARRIERS CONFERENCE,	)	
AMERICAN TRUCKING ASSOCIATIONS, INC.	)	
	)	
Complainant,	)	
	)	
v.	)	
	)	FMC Docket No. 20-14
OCEAN CARRIER EQUIPMENT MANAGEMENT	)	
ASSOCIATION, INC.; CONSOLIDATED CHASSIS	)	
MANAGEMENT, LLC; CMA CGM S.A.; COSCO	)	
SHIPPING LINES CO. LTD.; EVERGREEN LINE	)	
JOINT SERVICE AGREEMENT, FMC NO. 011982;	)	
HAPAG-LLOYD AG; HMM CO. LTD.; MAERSK	)	
A/S; MSC MEDITERRANEAN SHIPPING	)	
COMPANY S.A.; OCEAN NETWORK EXPRESS	)	
PTE. LTD.; WAN HAI LINES LTD.; YANG MING	)	
MARINE TRANSPORT CORP.; AND	)	
ZIM INTEGRATED SHIPPING SERVICES,	)	
	)	
Respondents.	)	
	)	

RESPONDENTS' MOTION FOR LEAVE TO FILE INTERLOCUTORY APPEAL

Pursuant to Rule 221 of the Federal Maritime Commission's Rules of Practice and Procedure, 46 C.F.R. §502.221, Respondents, by and through their undersigned counsel, respectfully move for leave to appeal the Presiding Officer's November 18, 2020 order denying Respondents' motion to dismiss the complaint in the above captioned case. The reasons supporting this motion are set forth in detail in the attached Memorandum of Law.

Pursuant to Rule 221, the appeal which would be filed is also attached to this motion.

Pursuant to 46 C.F.R. §502.71, Respondents have conferred with counsel for Complainant, who advised they will oppose this motion.

WHEREFORE, Respondents respectfully request that the motion for leave to appeal be

granted and that this proceeding be stayed pending a Commission ruling on the appeal.

Respectfully submitted,

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DATED: December 3, 2020

¹ Other than Hapag-Lloyd AG and Yang Ming Marine Transport Corporation, and as co-counsel for Evergreen Line Joint Service Agreement.

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